

Plaintiff to prepare and submit the Order.

This matter will be re-assigned to Department 50, Commissioner Eichenberger, with a hearing scheduled for 5/18/26, 1:15 pm.

13. 9:00 AM CASE NUMBER: MSL21-02132

CASE NAME: CAPITAL ONE BANK VS ISRAEL

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLN ON 11/24/25**

FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was the same as that listed in the Answer.

The parties entered into a CCP 664.6 agreement, filed on 11/1/24, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$5,174.39, plus costs, less any credits for payments received.

The Defendant made payments of \$3,854.39.

Costs are \$432. A memo on costs was filed 11/24/25.

The Stipulated Agreement was filed 11/1/24.

A dismissal was entered on 12/10/24.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,752.

Plaintiff shall prepare and submit a proposed order and judgment.

14. 9:00 AM CASE NUMBER: N25-2130
CASE NAME: DEEPAK MOORJANI VS. ROBBY DATTA
***HEARING ON MOTION IN RE: MONETARY SANCTIONS AGAINST PLAINTIFF**
FILED BY: DATTA, ROBBY
TENTATIVE RULING:

The parties are to appear on 5/12/26. The court will issue a ruling from the bench.

15. 9:00 AM CASE NUMBER: N25-2138
CASE NAME: DEEPAK MOORJANI VS. GENOVEVA SIRLOPU
***HEARING ON MOTION IN RE: MOTION FOR MONETARY SANCTIONS FILED BY**
FILED BY: SIRLOPU, GENOVEVA
TENTATIVE RULING:

The parties are to appear on 5/12/26. The court will issue a ruling from the bench.

16. 9:00 AM CASE NUMBER: N25-2433
CASE NAME: UFCW-NORTHERN CALIFORNIA EMPLOYERS JOINT PENSION TRUST FUND (FUND NO. 100) VS. JUG SHOP, INC.
HEARING IN RE: VERIFIED PET. TO CONFIRM ARBITRATION AWARD & FOR ATTY FEES (CONT FROM 1/20/26)
FILED BY:
***TENTATIVE RULING**

Background

Plaintiff has filed a Petition to confirm an arbitration award and for attorneys' fees. The Petition contains exhibits of over 200 pages, and Plaintiff often refers to particular sections of these exhibits yet makes nothing more than a broad citation to the entire exhibit. One example concerns the section of the Pension Agreement, in Exhibit B, that contains the provision requiring binding arbitration for any contribution disputes. This particular exhibit is over 100 pages, yet Plaintiff makes no attempt to identify the particular page – or pages – where this provision lies. Plaintiff simply cites to Exhibit B.

There are other examples of a similar vein.

The court is not going to wade through hundreds of pages of exhibits to find a particular, salient clause.

This court already pointed out this very problem in its order to continue this Petition, which was originally scheduled for 3/24/26, yet it does not appear Plaintiff took any corrective measures.